



Chichester Rural District Council Act 1964

CHAPTER vi

ARRANGEMENT OF SECTIONS

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ELIZABETH II



1964 CHAPTER vi

An Act to provide for the cesser of charges payable under the Coast Protection Act, 1949, in respect of certain coast protection works at Selsey; to authorise the rural district council of Chichester to repay amounts already paid in respect of such charges and for purposes incidental thereto. [10th June 1964]

WHEREAS:

(1) The rural district of Chichester in the county of Sussex is under the management and local government of the rural district council of Chichester (in this Act referred to as "the Council"):

(2) The Council in pursuance of their powers under the Coast Protection Act, 1949 (in this Act referred to as "the Act of 1949"), prepared a scheme for the carrying out of coast protection works at Selsey in the said rural district, which scheme was confirmed with modifications by the Chichester Rural (Selsey) Works Scheme Confirmation Order, 1953, as varied by subsequent Orders (and as so confirmed and varied is in this Act referred to as "the scheme"):

(3) By virtue of the scheme and the Act of 1949 coast protection charges are payable to the Council by persons interested in land benefited by the carrying out of the works authorised by the scheme such land being designated by the scheme as contributory land:

(4) A recent review by the Minister of Housing and Local Government of the works scheme procedure under the Act of 1949 has resulted in the issue by the said Minister of advice to the effect that in certain circumstances all charges in respect of works schemes under the Act of 1949 which have been approved but not completed should be waived and that no more works schemes should be made for the purpose of recovering compulsory contributions:

(5) The scheme does not come within the scope of such advice and it is inexpedient that coast protection charges should continue to be levied in respect of the scheme while persons benefiting from works schemes in other parts of the rural district of Chichester are relieved of such payments:

(6) It is expedient that all liability of persons for the payment of coast protection charges in respect of the scheme should cease and determine and that the amount of such charges or any instalment or part thereof already paid by such persons should be repaid by the Council:

(7) It is expedient that the other provisions contained in this Act should be enacted:

(8) The purposes of this Act cannot be effected without the authority of Parliament:

(9) In relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act, 1933, have been observed:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Short title.

1. This Act may be cited as the Chichester Rural District Council Act 1964.

Interpretation.

2.—(1) In this Act, unless the subject or context otherwise requires—

“ the Act of 1949 ” means the Coast Protection Act, 1949;

“ coast protection charge ” means any coast protection charge as defined in section 6 of the Act of 1949 payable under or by virtue of the scheme or any determination of the Council made thereunder or of any decision of the Minister of Housing and Local Government or determination of the Lands Tribunal in respect thereof;

“ the Council ” means the rural district council of Chichester;

“ instalment ” means any periodical payment representing a payment of principal and interest in respect of a coast protection charge, payable to the Council in pursuance of an order made under section 10 of the Act of 1949;

“ the scheme ” means the scheme prepared by the Council under the provisions of the Act of 1949 and confirmed with modifications by the Chichester Rural (Selsey) Works Scheme Confirmation Order, 1953 (as varied by the Chichester Rural (Selsey) Works Scheme Confirmation (Amendment) Order, 1955, the Chichester Rural (Selsey) Works Scheme Confirmation (Amendment) Order, 1958, and the Chichester Rural (Selsey) Works Scheme Confirmation (Amendment) Order, 1961).

(2) Unless the context otherwise requires, any reference in this Act to any enactment shall be construed as a reference to that enactment as amended by or under any other enactment including this Act.

3. Notwithstanding anything contained in the Act of 1949 or in the scheme all liability on the part of any person for the payment of any coast protection charge or any instalment shall cease and determine.

4.—(1) In those cases where charges have been received by the Council, they shall repay, in accordance with the provisions of this section, the amount of the charges so received.

(2) Where at the passing of this Act the person who paid the charge is still entitled to the interest in the contributory land in respect of which the charge had been levied the Council shall repay the amount of the charge to that person.

(3) Where at the passing of this Act the person who paid the charge has ceased to be entitled to the aforesaid interest the Council shall repay the amount of the charge to such person (and if to more than one person in such proportions) as they consider equitable in the circumstances.

(4) In this section—

the expression “ charge ” means a coast protection charge or any part thereof or an instalment;

the expression “ contributory land ” means land benefited by the carrying out of the works authorised by the scheme and designated by the scheme as contributory land.

Power to borrow.

5.—(1) The Council may borrow without the consent of any sanctioning authority, for any of the purposes specified in the first column of the following table, the sum requisite :—

(1) Purpose for which money may be borrowed	(2) Maximum period for repayment of loan calculated from the date or dates of borrowing
(a) The payment of any sum payable under section 4 (Repayment of coast protection charges) of this Act	Ten years.
(b) The costs, charges and expenses of this Act	Five years.

(2) Every sum borrowed under subsection (1) of this section shall be repaid within such period as the Council, without the consent of any sanctioning authority, may determine, not exceeding the period specified in relation thereto in the second column of the said table.

(3) Subject to the provisions of this section, Part IX of the Local Government Act, 1933, shall have effect as if money borrowed under this section were borrowed under that Part.

(4) It shall not be lawful to exercise the powers of borrowing conferred by this section other than the power of borrowing to pay the costs, charges and expenses of this Act, except in compliance with any order for the time being in force under section 1 of the Borrowing (Control and Guarantees) Act, 1946.

Costs of Act.

6. The costs, charges and expenses preliminary to and of and incidental to the preparing, applying for, obtaining and passing of this Act shall be paid by the Council.

Table of Statutes referred to in this Act

Short title	Session and chapter
Local Government Act, 1933	23 & 24 Geo. 5 c. 51.
Borrowing (Control and Guarantees) Act, 1946	9 & 10 Geo. 6 c. 58.
Coast Protection Act, 1949	12, 13 & 14 Geo. 6 c. 74.

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